

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

August 6, 2026

8:30 a.m./1:30 p.m.

14. DANIEL FREIER V. NANCEY NIEMAN

25FL1234

Petitioner filed a Request for Order (RFO) on May 20, 2026, seeking an order compelling Respondent to serve her Preliminary Declaration of Disclosure (PDD), monetary sanctions, a review hearing, as well as evidentiary sanctions. Respondent was mail-served on May 24, 2026.

Respondent has not filed a responsive declaration.

Family Code sections 2104 imposes on each party the obligation of making a preliminary disclosures of assets within the specified timeframes. For the party responding to a Petition for Dissolution, the disclosure is due either concurrently with the response or within 60 days of filing the same. Where a party fails to comply with Section 2104, the complying party may, among other things, file a motion to compel and seek sanctions against the noncomplying party. Fam. Code § 2107(b)(1). “[T]he court *shall*...impose monetary sanctions against the noncomplying party. Sanctions shall be in an amount sufficient to deter repetition of the conduct or comparable conduct, and *shall* include reasonable attorney’s fees, costs incurred, or both, unless the court finds that the noncomplying party acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Fam. Code § 2107(c).

Here, Petitioner has complied with the law and served his PDD; as such he has standing to assert his demand for the same pursuant to Family Code Section 2107. Accordingly, Respondent is ordered to serve full and complete preliminary declarations of disclosure, with supporting documents, no later than September 6, 2026.

Respondent is sanctioned \$90 pursuant to Family Code § 2107. This amount is to be paid directly to Petitioner and may be paid in one lump sum or in monthly increments of \$10 commencing on September 1, 2026 and continuing on the 1st of each month thereafter until paid in full (approximately 9 months). If any payment is missed or late the entire amount shall become immediately due and payable.

Petitioner’s request for Section 271 sanctions is denied. An award for attorney’s fees and sanctions may be made pursuant to Family Code section 271 which states, in pertinent part, “...the court may base an award of attorney’s fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys.” Fam. Code § 271(a). However,

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where a party did not incur attorney's fees, such as is the case with a pro se litigant, that party cannot collect sanctions pursuant to Section 271. In Re Marriage of Erndt & Terhorst, 59 Cal. App. 5th 898 (2021). Because Petitioner is pro per, an award of sanctions pursuant to Family Code § 271 is improper and therefore, the request is denied.

The court reserves on Petitioner's request for further evidentiary and monetary sanctions. The court sets a further review hearing for October 8, 2026, at 1:30 PM in Department 5. Supplemental Declarations are to be filed and served at least 10 days prior to the review hearing. Updated Income and Expense Declarations are also to be filed and served at least 10 days prior to the review hearing.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: RESPONDENT IS ORDERED TO SERVE FULL AND COMPLETE PRELIMINARY DECLARATIONS OF DISCLOSURE, WITH SUPPORTING DOCUMENTS, NO LATER THAN SEPTEMBER 6, 2026. RESPONDENT IS SANCTIONED \$90 PURSUANT TO FAMILY CODE § 2107. THIS AMOUNT IS TO BE PAID DIRECTLY TO PETITIONER AND MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$10 COMMENCING ON SEPTEMBER 1, 2026 AND CONTINUING ON THE 1ST OF EACH MONTH THEREAFTER UNTIL PAID IN FULL (APPROXIMATELY 9 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

THE COURT RESERVES ON PETITIONER'S REQUEST FOR FURTHER EVIDENTIARY AND MONETARY SANCTIONS. THE COURT SETS A FURTHER REVIEW HEARING FOR OCTOBER 8, 2026, AT 1:30 PM IN DEPARTMENT 5. SUPPLEMENTAL DECLARATIONS ARE TO BE FILED AND SERVED AT LEAST 10 DAYS PRIOR TO THE REVIEW HEARING. UPDATED INCOME AND EXPENSE DECLARATIONS ARE ALSO TO BE FILED AND SERVED AT LEAST 10 DAYS PRIOR TO THE REVIEW HEARING.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.